

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), GURUGRAM
CIVIL SUIT NO. 612 OF 2025

EVIDENCE AFFIDAVIT ON BEHALF OF THE DEFENDANT

I, Manpreet Sidhu, do hereby solemnly affirm and state as follows:

Do hereby solemnly affirm and state as follows:

1. I am the Defendant above named and am well conversant with the facts of the case.
2. I admit that I am the recorded owner of the suit property vide registered Sale Deed dated 12.03.2019 (Ex. P-3).
3. I admit execution of the Agreement to Sell dated 05.10.2024 (Ex. P-1) but state that time was of the essence given the fixed date for payment of the balance consideration.
4. I state that the Plaintiff's bank loan sanction dated 10.02.2025 was obtained only shortly before the due date and did not, without more, constitute readiness and willingness in the manner required by law.
5. I state that the Plaintiff sought an extension of time on or about 15.03.2025 for reasons attributable to his own financing arrangements, and any latitude I indicated was purely oral and without prejudice to my rights.
6. I state that the balance consideration was not tendered by the Plaintiff on or before 05.04.2025, entitling me to treat the earnest money as liable to forfeiture.
7. I deny having any intention to sell the suit property to a third party and state that my reply dated 10.05.2025 to the Plaintiff's legal notice has been misconstrued.
8. I state that the Plaintiff is not entitled to a decree of specific performance and that, at best, he would be entitled to a bare refund of the earnest money paid, without interest.
9. I reiterate the contents of my Written Statement as part of my evidence and pray that the suit be dismissed with costs.

VERIFICATION

The contents of this affidavit are true to my knowledge.

Verified at Gurugram on this the 20th day of January, 2026.

DEPONENT